

Present :

Mr. Justice Ashish Ranjan Das.

Civil Revision No. 3923 of 2014.

In the matter of:

Nittananda Biswas and others

.....Petitioners

-Versus-

Nimai Mondal alias Roy being dead his legal heirs:

(1) Dipok Mondal alias Roy and others.

.....Opposite parties.

Mr. Ahmed Nowshed Jamil, Advocate.

....For the petitioners.

Mr. M. Sadekur Rahman, Advocate

.....For the opposite parties.

Heard on: 24.10.2019, 18.11.2019
and 19.11.2019

Judgment on : 28.11.2019

Ashish Ranjan Das, J:

The plaintiff – opposite party sued for permanent injunction of his area of land of 2 acres. The suit was decreed. In appeal the decree of the trial court was affirmed. Now by this rule under section 115(1) of the Code of Civil Procedure, the propriety of the judgment and decree dated 04.08.2014 and 11.08.2014 respectively passed in Title Appeal No. 157 of 2013 by the learned Additional District Judge, 2nd. Court, Khulna affirming the judgment and decree of permanent injunction dated 12.09.2013 and 19.09.2013 in Title Suit No.58 of 2010 has been called in question.

Succinct facts that could be gathered from the file and relevant for the purpose may be summarized as under:

The suit properties occurred in C.S. khatian no.600 in several plots that include plot no. 3681 covering 8.69 acres out of which 2 acres of the property is the subject matter of the suit. Admittedly the properties in the khatian belonged to Chandmoni and Devnath and it was subsequently S.A. recorded in khatian no.456. Chandmony transferred 2 acres of land to Devnath Mondal by way of kabala dated 02.03.1936. Later Devnath Mondal sold that 2 acres of land by way of registered kabala dated 10.02.1985 to Bipod Bhanjan Adhikari and Nittyaranjan Roy Gradual heirs of Chandmoni namely Manmatha, Laxmikanto and Nimai brought preemption Miscellaneous Case No.09 of 1985 and obtained an order of preemption as the property was initially their grandfather's land. The other side preferred miscellaneous appeal that too was dismissed. Thus that 2 acre of land went back by way of preemption and was recorded in the D.P. khatian Nos.1281 and 1883 in the name of the plaintiffs. As the defendants threatened with dispossession on 18.07.2010. The plaintiff Nimai Mondal being dead his heirs, Nimai mondal brought this suit for permanent injunction. However Nimai Mondal later passed away and his heirs has been substituted.

Defendant nos. 1-3 contested the suit by filing a written statement. They admitted that the property belonged to Chanmoni Mondal and the plot number and khatian number were recorded and

corrected and he of course transferred that 2 acres of land to Debnath Mondal by way of registered kabala dated 02.03.1936. But Chanmoni's one of the 3 sons, Lxmikanto sold 49 decimals of land to Monoranjan alias Akasi Biswas by way of registered kabala dated 26.04.1973. While in possession Monoranjan died leaving sons, Nittanando the petitioner and Pronob Biswas. Thus some of the defendants have got their share, area of the plaintiffs although the suit properties originally belonged to the plaintiffs grandfather and the portion of 2 acres were taken back by way of preemption. But physical possession of a portion is lying with the defendants. Besides the plaintiffs area is not specified nor demarcated. Hence there should be no decree and permanent injunction.

The learned trial court found that long since that 2 acres of land out of 8.69 acres of plot no.3681 has been remaining demarcated and it has been under possession of the plaintiff- opposite parties. Hence there must be a decree of permanent injunction. The suit was decreed and in appeal the appellate court also arrived at the same finding and decision and thus the judgment and decree was affirmed.

I have gone through the materials annexed to the file including L.C.R and heard valuable submissions of the learned advocates for contesting parties at length.

Admitted position is that the suit properties under mouza- Pankhali, Police Station- Dacope, District- Khulna occurring in C.S khatian no. 600 and subsequent S.A. khatian no.456 comprising of 7

plots belonged to Chanmoni mondal gradual predecessors of the plaintiff opposite parties, it remains also admitted that plot no.3681 covering a vast area and on 02.03.1936 Chandmoni had sold this 2 acres of land to Debnath Mondal. Next the same portion of land was sold by Debnath mondal to Bipod Bhanjan Adhikari and Nittiranjan. It has not been disputed that the heirs of Chanmoni i.e. gradual predecessors of the plaintiff opposite parties filed a case of preemption obviously under section 96 of the State Acquisition and Tenancy Act by way of miscellaneous Case No. 09 of 1985 and the case of preemption was allowed in favour of the plaintiff opposite parties on 06.05.1989. The other said preferred appeal and lost, next the preemptors were inducted in to possession.

It is true that in the kabala dated 10.02.1985 that has been preempted contains several plots and it could not be meant from the kabala or from the application of preemption that this 2 acres of land formed a compact block. Taking this fact into account in the count the learned advocate for the defendant petitioners vigorously argued that all other issues remained admitted in that case also the suit for permanent injunction must fail simply because this 2 acre of land is not specified and demarcated in a schedule of the plaint and the application of the preemption or in the kabala dated 10.02.1985. Besides the witnesses testifying possession could not specify the area of 2 acre in which the plaintiff opposite parties are said to have been possessing.

So in the suit specific possession of the plaintiff-opposite parties in a demarcated area of 2 acres is in issue and in fact this issue has been raised before this court. The learned advocate for the petitioner-defendants categorically raised that the schedule to the plaint and even the application of preemption of this plaintiffs in Misc. Case No.09 of 1985 the disputed land of 2 acres has not been specified or demarcated. Hence the plaintiff opposite parties could not get a decree of permanent injunction rather to that extent both the courts below were at fault as they misread evidences and decreed the suit. In arguing so the learned advocate has cited a number of authorities that includes the case is reported in **43DLR (AD)1981 page 215 and 16 MLR(AD) 2011 page 413** where it has been as a matter of principle empathetically pressed and settled that in a suit for permanent injunction against a co-sharer, as it happened in this case, exclusive possession of the suit land must be proved. It is needless to say that there is no way to bypass the above principle laid down by their Lordships.

Now the only question remains is whether in the courts below through evidences the plaintiff opposite parties could proved their exclusive possession in the land for which they have been pressing for permanent injunction. The learned advocate for the plaintiff opposite parties argued that the area of 2 acres which the plaintiffs opposite parties have been possessing remains clearly defined specified and demarcated both in the schedule to the plaint and in the evidences

of the P.Ws that has been admitted by some DWs too. In the schedule to the plaint boundary of that 2 acre of land and the document occurring for several plots but falling in plot no. 3681 used to fall in plot of 8.69 acres and there is a description of four boundaries. In the plaint it is said that to the north of the plaintiffs demarcated area there is a canal to the south, there are Sudir Bhuban and Pancharam, to the east is Asok Saha, and to the west are Fatik Roy and Dilip Biswas. P.W.1 while giving evidence categorically stated that “আমরা ২.০০ একর জমি বাবদ কর খাজনা প্রদানে ফসল উৎপাদনে ভোগ দখল করি। বাদী পক্ষের নাম ভিপি ১২৮/১৪ ও ১৮৮৩ নং খতিয়ানে রেকর্ড হয়েছে”

That description given by the P.W.1 in his deposition has been corroborated by the P.W.2 but it is the case of the defence as D.W.1 raised that they possessed 1.11 acres of land within the area claimed by the plaintiffs. But the case of the plaintiff-opposite parties is that in fact the 2 acres of land are taken back by way of preemption and they were inducted in to possession also. Now the description of boundary given in the plaint as well as in evidence of P.Ws. 1 and 2 seems to have been otherwise admitted by the D.Ws. 2 and 3. D.W.2 Habibor Sheikh, even in his examination in chief stated that : “বাদীরা যে জমি দাবী করেছে তার মধ্যে ৩ নং বিবাদী, কাজল মহলাদার ও ২ নং বিবাদীদের জমি আছে। নালিশী জমির মধ্যে ২.০০ একর জমি বাদীরা দখল করে।

বাদীরা যে জমি ভোগ করে ও বিবাদীরা যে জমি ভোগ করে তা আলাদা আলাদাভাবে ভোগ দখল করে। বাদী ও বিবাদীদের জমির চৌহদ্দী পৃথক।”

Next he reversed his version but in his cross-examination D.W.2 clearly stated that the plaintiffs possesses a demarcated area not intervened by any other co-sharer or defendants, as he stated that :

“ তা বাদে ৬ একর অতিরিক্ত ৬ একর জমি বাটোয়ারার জন্য কোন আবেদন করিনি। আমরা ৫ জন বাদী ছাড়াও নালিশী জমিতে মোট শরিকের সংখ্যা ৭/৮ জন হবে। সেই ৭/৮ জনকে এ মামলায় পক্ষ করিনি। ৭/৮ জনের নাম ফটক, কালু, নিত্যনন্দন, জিতেন্দ্রনাথ রায়। অশোক সাহা, শান্তি বিশ্বাস, নিখিল দিলিপের নামে জমি নেই।”

While D.W.3 stated in his cross-examination virtually corroborated the evidence of P.Ws.1 and 2 respecting the boundary the land claimed and the possession by the plaintiffs and he further stated that :

“ বাদীরা যে জমি ভোগ দখল করে তা বিবাদীরা ভোগ দখল করে না। আমি ২ বছর ধরে বর্গা করি। বাদীরা পৈত্রিকাবে পাওয়া জমি ভোগ দখল করে না। বিবাদীরা কিনে পেয়েছে। ঐ জমি আলাদা আলাদা। তবে ঐ জমি লাগোয়া। ”

This being the situation as I see both the courts below were correct in assessing evidences required for a decree of permanent injunction that required no interference under this revisional jurisdiction, although the parties have been by this time become co-sharers among themselves. But the area of 2 acres where the plaintiff-opposite parties have been praying for permanent injunction has been clearly specified and demarcated in evidence and following the principle laid down by their lordships and cited above by the defendant petitioners was a fit case for permanent injunction as the plaintiffs could show their specific and exclusive possession over a portion of land.

In the suit title of the plaintiffs finally was not disputed even

their possession although not in specific way but remained un-denied in evidence as has been noted above and the disputed land has been the plaintiffs grandfather's properties. It is of course argued by the learned advocate for the petitioner defendants that it might have been appropriated if the plaintiffs would bring a suit for partition I find obvious logic in the submission that since the parties and the suit land and some others many outside have been co-sharers even before publication of the C.S record proper relief could be had in a suit for partition and either of the party may pursue it if so advised.

But until the properties are partitioned amicably or by a decree of partition as has been noted above, the plaintiffs are entitled to retain their possession and refrain an invader in to the co-sharers by way of permanent injunction in the specified area. The same order has been passed and I find nothing to interfere.

Accordingly the judgment and decree dated 04.08.2014 and 11.08.2014 passed in Title Appeal No. 157 of 2013 by the learned Additional District Judge, 2nd. Court, Khulna is hereby affirmed and the Rule is discharged.

Send down the L.C. records at once.

No order as to costs.

The office is directed to communicate this judgment and order to the court below, at once.

Justice Ashish Ranjan Das.